

Western Australia

Criminal Investigation (Identifying People)



~~Diplomatic and Consular Privileges~~
Amendment Act 2013–1988

Criminal Investigation (Identifying People) Amendment Act 2013

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Western Australia

Criminal Investigation (Identifying People) Amendment Act 2013

No. ~~22~~**15** of
~~2013~~**1988**

**An Act to amend the Criminal Investigation (Identifying People)
Act 2002~~Diplomatic Privileges and Immunities Act 1967 and the
Consular Privileges and Immunities Act 1972~~, and for related
purposes.**

[Assented to 12 November 2013~~11 May 1988~~]

The Parliament~~BE IT ENACTED~~ by the Queen, and the Senate and the
House of Western~~Representatives of the Commonwealth of~~ Australia
enacts, as follows:

Part 1 — Preliminary

1. ~~PART I — PRELIMINARY~~

Short title

~~1.~~ This ~~is the Criminal Investigation (Identifying People) Act~~
~~may be cited as the Diplomatic and Consular Privileges~~
~~Amendment Act 2013-1988.~~

2. Commencement

~~2.~~ This Act comes into operation as follows —

(a) ~~sections 1 and 2 — commences~~ on the day on which ~~this~~
~~Act~~ receives the Royal Assent (~~assent day~~);-

(b) ~~section 28 — on a day fixed by proclamation;~~

(c)

**~~PART II — AMENDMENT OF THE DIPLOMATIC PRIVILEGES
AND IMMUNITIES ACT 1967~~**

~~3. In this Part, “Principal Act” means the rest *Diplomatic Privileges and Immunities Act 1967*¹~~

~~Application of amendments~~

~~4. The amendments of the Act — on the day Principal Act made by sections 5 and 7 apply, and shall be deemed to have applied, in relation to purchases made on or after assent day 1 July 1987.~~

Part 2 — Criminal Investigation (Identifying People)**Interpretation**

~~5. Section 4 of the Principal Act 2002 is amended~~

3. Act amended

This Part amends the *Criminal Investigation (Identifying People) Act 2002*.

4. Section 3 amended

- (1) In section 3(1) ~~by inserting in subsection (1) the definition of~~
identifying feature in the example delete “the face” and
~~insert following definitions:~~

the face, iris or retina

- (2) In section 3(1) in the definition of *identifying information*
delete “has, except in Schedule 1,” and insert:

has

- (3) In section 3(1) in the definition of *identifying particular* delete
“61 or Schedule 1 clause 1,” and insert:

52A or 61,

- (4) In section 3(1) in the definition of *intimate identifying
procedure*:

- (a) in paragraph (c) delete “blood;” and insert:

blood; or

(b) after paragraph (c) insert:

(d) the taking of a sample of any bodily material of the person, other than the person's blood, by means of a procedure that is—
~~“prescribed overseas country” means an overseas country~~
prescribed by the regulations to be an intimate identifying procedure;

5. Section 7A inserted

After section 6 insert:

7A. Requesting or informing people under this Act

Unless expressly provided otherwise, if this Act permits a person to make a request to another person or requires a person to inform another person, the request or information may be given to the other person orally or in writing.

6. Section 7 amended

In section 7 after paragraph (a) insert:

(ba) does not comply with any reasonable request made to him or her in order to enable the procedure to be done; or

7. Section 8 amended

(1) In section 8(2) after “body tissue” insert:

(including bone or teeth)

(2) After section 8(3) insert:

(4) The regulations, in relation to any specific identifying particular of a person prescribed under section 17, 23, 34, 47 or 52A —

(a) may specify one or more identifying procedures that may be done on the person to obtain bodily material for the purpose of obtaining that identifying particular of the person; and

(b) in relation to an identifying procedure so specified, may provide that the procedure must not be used to obtain bodily material from the person unless it is impracticable to use another specified procedure.

Note: The heading to amended section 8 is to read:

Procedures for obtaining material from which to obtain specific identifying particulars

8. Section 9 amended

In section 9(1) delete the definition of *sample* and insert:

sample means a sample of bodily material taken from a person under this Act for the purpose of obtaining —

(a) the DNA profile of the person; or

(b) any identifying particular prescribed for the purposes of this definition.

9. Section 11 amended

In section 11(1) in the definition of *identifying particular* after paragraph (e) insert:

(f) an identifying particular ‘registered person’ has the same meaning as in the *Sales Tax Assessment Act (No. 1) 1930*”.

~~Vienna Convention on Diplomatic Relations to have force of law~~

~~6. Section 7 of the person that Principal Act is prescribed under section 17, 23, 34, 47 or 52A;~~

10. Section 16 amended

(1) In section 16(1) insert ~~by inserting~~ in alphabetical order:

face covering means an item of clothing, hat, helmet, mask or sunglasses, or any other thing worn by a person, that totally or partially covers the person’s face;

~~paragraph (2) (h) “and Trade” after “of Foreign Affairs”.~~

~~7. After section 16(3) insert:~~

(4A) If —

(a) an officer makes a request to a person under subsection (2); or

(b) a police officer requests or requires a person to give the police officer, under another written law and for a forensic purpose, any or all ~~10~~ of the person’s personal details,

the officer may request the person —

(c) to remove or adjust any face covering worn by the person; or

(d) to do any other thing reasonably necessary,

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to enable the officer to see the person's face or verify the correctness of any personal detail, or any evidence of any personal detail, given by the person.

~~(4B) ItPrincipal Act the following section is sufficient~~
compliance with a request made under subsection (4A)(c) if only so much of the person's face covering that totally or partially covers the person's face is removed or adjusted.~~inserted:~~

~~(4C) If an officer makes a requestExemption from sales tax for prescribed overseas mission~~

~~“10A. (1) Subject to a person under this section, sales tax imposed under a law relating to sales tax is not payable in respect of goods that are:~~

- ~~(a) purchased directly from a registered person by, or on behalf of, the officer may detainhead of a mission of a prescribed overseas country;~~
- ~~(b) at the person for a date of purchase, intended for the official use of the mission; and~~
- ~~(c) the subject of an agreement between the head of the mission and the Commonwealth under subsection (3).~~

~~“(2) Subsection (1) does not apply in respect of goods that are intended for the official use of a mission where, by virtue of subsection (1), sales tax was not payable on any other goods of the same kind, or of a similar kind, intended for the official use of the mission and the Treasurer, by instrument in writing, declares that, in his or her opinion, the reasonable period for the purpose of the person's compliance requirements of the mission have been adequately met by the other goods.~~

~~“(3) The head of a mission may agree with the request or to verify the correctness of any personal detail, or any evidence of any personal detail, given by the person.Commonwealth that where, by virtue of subsection (1), sales tax is not payable on goods:~~

~~(3) In section 16(4) delete “(a) the head of the mission will, if the goods are sold or otherwise disposed of in Australia or in an external Territory within 2 years after the date of purchase, pay to the Commonwealth, unless the Treasurer otherwise determines, an amount equal to the sales tax~~

s. 11

~~that, but for subsection (2) or (3)” (1), would have been payable in respect of the goods; and insert:~~

~~subsection (2), (3) or (4A)~~

~~(4) In section 16(6) delete “subsection (2) or (3)” and insert:~~

~~subsection (2), (3) or (4A)~~

11. Section 17 amended

~~In section 17 in the definition of *identifying particular* after paragraph (e) insert:~~

~~(f) an identifying particular of the person that is (b) the head of the mission will, if the head or a former head of the mission has agreed to the condition set out in paragraph (a) in relation to other goods and has not fulfilled that condition—comply with such further conditions if any, as the Treasurer, by instrument in writing, determines (which may include a condition that the head of the mission gives security, satisfactory to the Treasurer, that he or she will comply with the agreement).”.~~

~~References to the Minister for Industry, Technology and Commerce to replace references to the Minister for Industry and Commerce~~

~~8. The Principal Act is amended as set out in Schedule 1.~~

PART III—AMENDMENT OF THE CONSULAR PRIVILEGES AND IMMUNITIES ACT 1972

~~9. In this Part, “Principal Act” means the *Consular Privileges and Immunities Act 1972*²:~~

Application of amendments

~~10. The amendments of the Principal Act made by sections 11 and 12 apply, and shall be deemed to have applied, in relation to purchases made on or after 1 July 1987.~~

Interpretation

~~11. Section 3 of the Principal Act is amended by inserting in subsection (1) the following definitions:~~

~~“prescribed overseas country” means an overseas country prescribed by the regulations for the purposes of this definition;~~

12. Section 19 amended

~~Delete section 19(3).~~

13. Section 23 amended

~~In section 23 in the definition of *identifying particular* after paragraph (e) insert:~~

~~(f) an identifying particular of the person that is prescribed for the purposes of this definition;~~

14. Section 34 amended

~~In section 34 in the definition of *identifying particular*:~~

~~(a) after paragraph (b) insert:~~

~~(ca) a measurement of any identifying feature of the person;~~

~~(b) after paragraph (c) insert:~~

~~(f) an identifying particular of the person that is prescribed for the purposes of this definition;~~

15. Section 38 amended

~~In section 38(2)(a) delete “an offence” and insert:~~

a serious offence

16. Section 40 amended

 ‘registered person’ has the same meaning as in the *Sales Tax Assessment Act (No. 1) 1930.*”.

12. After section 40(3) insert:

- (4) If a suspect is a protected person and, after making reasonable enquiries to find a responsible person, an officer reasonably suspects that —
- (a) there is no responsible person; or
- (b) a responsible person cannot be found within a reasonable time; or
- (c) it is impracticable to request ~~8 of the~~ consent of a responsible person,

 an identifying procedure may only be done on ~~Principal Act~~ the suspect if a magistrate issues an IP warrant (suspect) that authorises it.

17. Section 42 amended

 In following section 42(2)(b) delete “section 40(2) or (3)” and insert:

 section 40(2), (3) or (4)

18. Section 47 amended

- (1) In section 47 in the definition of *identifying particular*, in relation to a charged suspect charged with a serious offence:

 (a) after paragraph (c) insert:

- (da) an impression of an identifying feature of the suspect (including a dental impression);
- (db) a sample of the suspect's hair taken for purposes other than obtaining the suspect's DNA profile;

(b) after paragraph (d) insert:

- (e) an identifying particular of the suspect that is prescribed for the purposes of this definition;

(2) In section 47 in the definition of *identifying particular*, in relation to a charged suspect charged with an offence other than a serious offence:

(a) in paragraph (c) delete "suspect." and insert:

suspect;

(b) after paragraph (c) insert:

- (d) an identifying particular of the suspect that is prescribed for the purposes of this definition, which cannot include an identifying particular listed in paragraph (da), (db) or (d) of the definition of *identifying particular*, in relation to a charged suspect charged with a serious offence.

19. Section 49 amended

(1) Delete section 49(1) and insert:

(1) If it is practicable to do so, an officer may request a charged suspect to consent to an identifying procedure being done on the suspect for the purpose of obtaining one or more of a charged suspect's identifying particulars.

(2) Delete section 49(2)(f)(i) and (ii) and insert:

(i) the suspect may be arrested; and

(ii) the procedure may be done on the suspect against the suspect's will.

20. Section 50 amended

(1) In section 50(1):

(a) delete "A police officer" and insert:

An officer

(b) delete "the section and the charged suspect's responses (if any)." and insert:

that section and whether the charged suspect consented to the request or not.

(2) After section 50(1) insert:

(2A) If an officer does not make a request to a charged suspect under section 49 because it is not practicable to do so, the officer must ensure that a record is made of the reasons why it was not practicable to make the request.

(3) In section 50(2) delete “The record” and insert:

A record under this section

21. Section 51 amended

(1) In section 51(1)(b) delete “in accordance with” and insert:

under

(2) Delete section 51(2) and (3) and insert:

(2) If —

(a) subsection (1)(a) and (b) apply but the charged suspect does not consent or withdraws consent to the identifying procedure; or

(b) it is not practicable to make a request to a charged suspect under section 49,

an officer may —

(c) if the charged suspect is not in custody — without a warrant arrest the suspect and detain him or her for a reasonable period in order to do the identifying procedure; and

(d) do the identifying procedure on the charged suspect against the suspect’s will.

22. Part 8A ~~is inserted:~~

After section 51 insert:

Part 8A — Identifying particulars of serious offenders

52A. Terms used

In this Part —

identifying particular, in relation to a serious offender,
means —

- (a) a print of the offender's hands (including fingers), feet (including toes) or ears;
- (b) a photograph of the offender (including of an identifying feature of the offender);
- (c) the offender's DNA profile;
- (d) an identifying particular of the offender that is prescribed for the purposes of this definition;

serious offender means a ~~Exemption from sales tax for prescribed overseas consular post~~

~~“8A. (1) Subject to this section, sales tax imposed under a law relating to sales tax is not payable in respect of goods that are:~~

- ~~(a) purchased directly from a registered person who is —~~
 - (a) found guilty of a serious offence (whether or not a spent conviction order is made in respect of the finding of guilt or a conviction is recorded); or
 - (b) found not guilty of a serious offence on account of unsoundness of mind.

52B. How identifying procedures are to be done

An identifying procedure that under this Part may be done on a person must be done in accordance with Part 8.

52C. Identifying particulars may be taken

- (1) If a police officer reasonably suspects a person is a serious offender and his or her identifying particulars —
- (a) are not held or may not be held by the WA Police; or
 - (b) are or may be needed to verify the person's identity by comparison with identifying particulars already held by the WA Police,
- the police officer may, within 6 months after the date on which the person became a serious offender, request the offender, if it is practicable to do so, to consent to a non-intimate identifying procedure being done on the offender for the purpose of obtaining one or more of the offender's identifying particulars.
- (2) A police officer who requests a serious offender to consent to a non-intimate identifying procedure being done on the offender must at the time inform the offender of these matters —
- (a) the purpose of the procedure;
 - (b) how the procedure will be done;
 - (c) that information derived from the procedure may be compared with or put in a forensic database;
 - (d) the circumstances in which destruction may be requested under section 69;
 - (e) that the procedure may provide evidence that could be used in a court against the offender;
 - (f) that if the offender does not consent or withdraws consent to the procedure —
 - (i) the offender may be arrested; and
 - (ii) the procedure may be done on the offender against the offender's will.

52D. Request and giving of information to be recorded

- (1) A police officer who makes a request under section 52C must ensure that a record is made of the request, of the information given under that section and whether the serious offender consented to the request or not.
- (2) If a police officer does not make a request to a serious offender under section 52C because it is not practicable to do so, the police officer must ensure that a record is made of the reasons why it was not practicable to make the request.
- (3) A record under this section must be an audiovisual record or in writing.

52E. When identifying procedure may be done

- (1) If —
 - (a) under section 52C a request is made to a serious offender; and
 - (b) the offender is informed under that section; and
 - (c) the offender consents to the identifying procedure being done,then the non-intimate identifying procedure may be done on the offender.
- (2) If —
 - (a) subsection (1)(a) and (b) apply but the serious offender does not consent or withdraws consent to the identifying procedure; or
 - (b) it is not practicable to make a request to a serious offender under section 52C,an officer may —
 - (c) if the offender is not in custody — without a warrant arrest the offender and detain him or

her for a reasonable period in order to do the non-intimate identifying procedure; and

(d) do the non-intimate identifying procedure on the offender against the offender's will.

23. Section 56 amended

(1) In section 56 delete "When" and insert:

(1) When

(2) At the end of section 56 insert:

(2) If the regulations, for the purpose of the definition of *identifying particular* in section 17, 23, 34, 47 or 52A, prescribe an identifying particular, the regulations may —

(a) for each identifying procedure needed to obtain the identifying particular, prescribe powers that may be exercised to do the procedure; and

(b) for each power, prescribe the person, or class of persons, who may exercise it.

24. Section 59 amended

(1) Before section 59(1) insert:

(1A) This section applies if, under other provisions of this Act, a person may be requested or required to undergo an identifying procedure.

(2) In section 59(1) delete "requested —" and insert:

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requested or required —

(3) In section 59(2) after “requested” insert:

or required

(4) In section 59(3) after “request” insert:

or requirement

25. Section 63 amended

After section 63(1)(b) insert:

(ca) may be used to obtain any identifying particular
of the deceased person in accordance with the
direction of a coroner; and

26. Section 67 amended

(1) After section 67(1)(b) insert:

(ca) may be used to obtain any identifying particular
of the suspect; and

(2) In section 67(2) delete “Part 7.” and insert:

Part 7 as if the references in subsection (1)(a) and (b) to
“as soon as it is obtained” were deleted.

27. Section 68A inserted

After section 67 insert:

68A. Identifying information of serious offenders

(1) In this section —

former Schedule 1 clause 6 means Schedule 1 clause 6 as in effect under the former section 95;

former section 95 means section 95 as in effect before it was repealed by the *Criminal Investigation (Consequential Provisions) Act 2006* section 40.

(2) Identifying information of a serious offender obtained under Part 8A —

(a) may be compared with other information, whether or not in a forensic database, as soon as it is obtained; and

(b) may be put in a forensic database as soon as it is obtained; and

(c) may be used to obtain any identifying particular of the offender; and

(d) must be destroyed if the serious offender ceases to be a serious offender and destruction is requested under section 69 by, or on behalf of, the offender.

(3) Subsection (2) applies in relation to identifying information ~~head~~ of a serious offender obtained under the former Schedule 1 clause 6 as if the references in subsection (2)(a) and (b) to “as soon as it is obtained” were deleted.

28. Section 76 amended

(1) In section 76 delete the definition ~~consular post~~ of:

crime scene index

DNA database index

missing persons index

offenders index

suspects index

unknown deceased persons index

volunteers (limited purposes) index

volunteers (unlimited purposes) index

(2) In section 76 in the definition of *DNA database*:

(a) delete paragraph (a);

(b) delete paragraph (c) and insert:

(c) any index ~~a~~ prescribed by the regulations for
the purposes of this definition ~~overseas country~~;

(3) In section 76 in ~~(b)~~ at the definition ~~date~~ of *statistical index*
delete “Part;” and insert:

Part.

Part 3 — Amendments to other Acts

29. Criminal Investigation Act 2006 amended

(1) This section amends ~~purchase, intended for the~~ *Criminal Investigation Act 2006*, ~~official use of the consular post; and~~

(2) In section 102(4) delete “identifying” and insert:

forensic

(3) In section 132(1)(f) delete “under a warrant issued”.

30. Criminal Organisations Control Act 2012 amended

(1) This section amends the *Criminal Organisations Control Act 2012*.

(2) In section 88(1)(a) delete “section 67(1)(a) and (b),” and insert:

section 67(1)(a), (b) and (ca),

(e) the subject of an agreement between the head of the consular post
and the Commonwealth under subsection (3).

~~s.4~~

~~“(2) Subsection (1) does not apply in respect of goods that are intended for the official use of a consular post where, by virtue of subsection (1), sales tax was not payable on any other goods of the same kind, or of a similar kind, intended for the official use of the consular post and the Treasurer, by instrument in writing, declares that, in his or her opinion, the reasonable requirements of the consular post have been adequately met by the other goods.~~

~~“(3) The head of a consular post may agree with the Commonwealth that where, by virtue of subsection (1), sales tax is not payable on goods:~~

- ~~(a) the head of the consular post will, if the goods are sold or otherwise disposed of in Australia or in an external Territory within 2 years after the date of purchase, pay to the Commonwealth, unless the Treasurer otherwise determines, an amount equal to the sales tax that, but for subsection (1), would have been payable in respect of the goods; and~~
- ~~(b) the head of the consular post will, if the head or a former head of the consular post has agreed to the condition set out in paragraph (a) in relation to other goods and has not fulfilled that condition—comply with such further conditions if any, as the Treasurer, by instrument in writing, determines (which may include a condition that the head of the consular post gives security, satisfactory to the Treasurer, that he or she will comply with the agreement).”.~~

~~References to the Minister for Industry, Technology and Commerce to replace references to the Minister for Industry and Commerce~~

~~13. The Principal Act is amended as set out in Schedule 2.~~

SCHEDULE 1

Section 8

**~~AMENDMENT OF THE DIPLOMATIC PRIVILEGES AND
IMMUNITIES ACT 1967 TO REPLACE REFERENCES TO THE
MINISTER FOR INDUSTRY AND COMMERCE WITH
REFERENCES TO THE MINISTER FOR INDUSTRY,
TECHNOLOGY AND COMMERCE~~**

~~The *Diplomatic Privileges and Immunities Act 1967* is amended by omitting from the following provisions “Minister for Industry and~~

~~Commerce” and substituting “Minister for Industry, Technology and Commerce”:~~

~~Subsection 8 (2), paragraphs 8 (3) (a) and (b), subsection 9 (2) and paragraphs 9 (3) (a) and (b).~~

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SCHEDULE 2

Section 13

**~~AMENDMENT OF THE CONSULAR PRIVILEGES AND
IMMUNITIES ACT 1972 TO REPLACE REFERENCES TO THE
MINISTER FOR INDUSTRY AND COMMERCE WITH
REFERENCES TO THE MINISTER FOR INDUSTRY,
TECHNOLOGY AND COMMERCE~~**

~~The *Consular Privileges and Immunities Act 1972* is amended by omitting from the following provisions “Minister for Industry and Commerce” and substituting “Minister for Industry, Technology and Commerce”:~~

~~Paragraph 6 (1) (a), subparagraphs 6 (1) (b) (i) and (ii), paragraphs 6 (2) (c) and 7 (2) (c), subsection 7 (3) and paragraphs 7 (4) (a) and (b).~~

NOTES

~~1. No. 16, 1967, as amended. For previous amendments, see No. 69, 1972; No. 216, 1973; No. 91, 1976; No. 155, 1979; Nos. 41 and 70, 1980; Nos. 26 and 80, 1982; and No. 65, 1985.~~

~~2. No. 62, 1972, as amended. For previous amendments, see No. 216, 1973; No. 91, 1976; No. 155, 1979; No. 70, 1980; Nos. 26, 80 and 115, 1982; No. 65, 1985; and No. 76, 1987.~~

~~[Minister’s second reading speech made in —
House of Representatives on 17 February 1988
Senate on 17 March 1988]~~